

Whangarei District Council Meeting Minutes

Date: Thursday, 28 November, 2024
Time: 9:00 a.m.
Location: Civic Centre, Te Iwitahi, 9 Rust Avenue

In Attendance

His Worship the Mayor Vince Cocurullo
Cr Gavin Benney
Cr Nicholas Connop
Cr Ken Couper
Cr Jayne Golightly (Teams)
Cr Phil Halse
Cr Deborah Harding
Cr Patrick Holmes
Cr Scott McKenzie
Cr Marie Olsen
Cr Carol Peters
Cr Simon Reid
Cr Phoenix Ruka
Cr Paul Yovich (Teams)

Scribe

N. Pestana (Team Leader, Democracy)

Administrative matters

- Meeting livestreamed
- Elected Members attending electronically
- Members of public recording
- Supplementary Reports
 - Confidential Item 1.8

1. Karakia/Prayer

His Worship the Mayor opened with a prayer.

2. Declarations of Interest / Take Whaipānga

Item 6.9 - Uptake of Severe Weather Emergency Recovery (Waste Management Order).

3. Apologies / Kore Tae Mai

There were no apologies.

4. Public Forum / Huihuinga-a-tangata

There were no speakers at public forum.

5. Confirmation of Minutes of Previous Meeting of the Whangarei District Council / Whakatau Meneti

5.1 Minutes Whangarei District Council Meeting held 24 October 2024

Moved By Cr Phil Halse

Seconded By Cr Deborah Harding

That the minutes of the Whangarei District Council meeting held Thursday 24 October 2024, having been circulated, be taken as read and now confirmed and adopted as a true and correct record of proceedings of that meeting.

Carried

5.2 Minutes Whangarei District Council meeting held on 7 November 2024

Moved By Cr Carol Peters

Seconded By Cr Patrick Holmes

That the minutes of the Whangarei District Council meeting held Thursday 7 November 2024, including the confidential section, having been circulated, be taken as read and now confirmed and adopted as a true and correct record of proceedings of that meeting.

Carried

6. Decision Reports / Whakatau Rīpoata

6.1 Notice of Motion - Background Information

Moved By His Worship the Mayor

Seconded By Cr Nicholas Connop

That the Council:

1. Notes the information contained in this report about the Directions relating the fluoridation of Whangārei's water supply and legal advice relevant to the notice of motion.
2. Notes the legal advice on the legal risks which include the potential for:
 - Prosecution;
 - Intervention by the Minister of Local Government;

- The Ministry of Health directly intervening to implement the directive;
 - The Ministry of Health seeking a court order for implementation; and
 - The risk of personal liability for Elected Members.
3. Notes that the Ministry of Health has indicated that their Bill of Rights review is in its final stages and they hope it will be completed by the end of the year.
 4. Notes that staff will keep Elected Members informed of any new or updated information as it becomes available.

Carried

Cr Benney requested his vote against be recorded.

6.2 Notice of Motion re Fluoridation – Cr Gavin Benney

Moved By Cr Gavin Benney

Seconded By His Worship the Mayor

That the Council:

1. Resolves to not add fluoride to the Whangarei District's water supplies as required by the directive from the Ministry of Health (MOH);
2. This decision is based on recent court rulings and research that question the effectiveness, safety and legality of fluoridation; and
3. That the Mayor and the Chief Executive write to the Ministry of Health, the Minister of Health and the coalition government advising them of this decision.

On the motion being put Cr Holmes called for a division:

	For	Against	Abstain
His Worship the Mayor	X		
Cr Gavin Benney	X		
Cr Nicholas Connop		X	
Cr Ken Couper		X	
Cr Jayne Golightly	X		
Cr Phil Halse	X		
Cr Deborah Harding			X

Cr Patrick Holmes		X	
Cr Scott McKenzie		X	
Cr Marie Olsen	X		
Cr Carol Peters		X	
Cr Simon Reid	X		
Cr Phoenix Ruka	X		
Cr Paul Yovich		X	
Results	7	6	1

The Motion was Carried (7 to 6)

Cr Harding abstained from voting.

Cr Golightly left the meeting at 10.17am after voting on Item 6.2.

6.3 Coastal Protection Works Policy Application – One Tree Point West

Moved By Cr Phil Halse

Seconded By Cr Deborah Harding

That the Council:

1. Adopts the Council Officer recommendation to approve the application for landowner approval pursuant the Coastal Protection Works Policy; and
2. Agrees that the proposal aligns with the purpose of the reserve as prescribed by Part 3 Reserves Act 1977 and s229 RMA 1991; and
3. Grants landowner approval, pursuant s23 Reserves Act 1977.
4. Notes that there is no funding for New Seawalls in the current Long Term Plan. Funding of the project will be through the directly affected community.

Carried

6.4 Alcohol Control Bylaw - Deliberations

Moved By Cr Gavin Benney

Seconded By His Worship the Mayor

That Council:

1. Approves the following amendment to the proposed register of alcohol bans:

- a. Beach Road, Onerahi: Option 2 to introduce an alcohol ban 24/7 along the Beach Road reserve and esplanade;
- b. Introduce an alcohol ban 24/7 in the areas of Oakura, Whananaki North and South, Matapouri – Whale Bay, North and South, Bream Bay (Marsden Point to south/eastern end of Waipu Cove), Langs Beach and Beach (as mapped in the proposed register of alcohol bans;
- Pataua
- Ocean

2. Agrees that no further changes are required at this time to the draft register of alcohol bans;
3. Agrees that no changes are required at this time to the wording of the draft Alcohol Control Bylaw;
4. Staff investigate targeted consultation with other coastal ratepayer groups including Bland Bay, Whangaruru North, Tutukaka Coast.
5. Notes staff analysis of risks and that resourcing and work programmes will need to be prioritised to undertake further consultation.

Carried

A short break was taken from 10.31am to 10.46am.

6.5 Adoption of the 2023-24 Annual Report

Moved By His Worship the Mayor

Seconded By Cr Ken Couper

That the Council:

1. Receives the independent Auditor's Report for inclusion within the 2023-24 Annual Report;
2. Notes that Note 32: "Events Occurring after the Balance Date" will be amended to include reference to the decision made on 28 November 2024 to not add fluoride to the Whangārei District's water supplies in contravention of the directive from the Ministry of Health;
3. Adopts the Annual Report for the year ended 30 June 2024; and
4. Authorises the Chief Executive to make any minor editing amendments that are required.

Carried

Cr's Halse and Reid requested their votes against be recorded.

6.6 Temporary Road Closure - LAB Concert 2025

Moved By Cr Phoenix Ruka

Seconded By Cr Deborah Harding

That the Council:

1. Approves the proposal to temporarily close the following roads to ordinary traffic for the L.A.B concert on the following date in accordance with the Transport (Vehicular Traffic Road Closure) Regulations 1965.

Saturday 25th January 2025

Okara Drive, from the roundabout at Okara Drive & Porowini Ave to the roundabout at Okara Drive & Port Road.

Period of Closure: 1pm to 10:30pm

2. Approves the proposal to temporarily close the side roads off the roads to be closed for up to 100 meters from the intersection for safety purposes.
3. Delegates to the Chair of the Infrastructure Committee and General Manager Infrastructure the power to give public notice of these proposed temporary closures, to consider any objections and to either approve, cancel, or amend any or all of the temporary road closures if applicable.

Carried

6.7 Temporary Road Closure Application – Northland Car Club Motor Sport Event Series (January – March 2025)

Moved By Cr Simon Reid

Seconded By Cr Marie Olsen

That the Council:

1. Approves the temporary closure of the proposed roads to ordinary traffic for the Northland Car Club Motor Sport Event Series (Jan – Mar 2025) on the proposed dates in accordance with section 342 (1)(b) and Schedule 10 Clause 11 of the Local Government Act 1974, subject to event organisers providing proof of public liability insurance to the Chair of the Infrastructure Committee and GM Infrastructure by no later than 18th December 2024.

Sunday 26th January 2025

Kaiikanui Road, from 3km's towards Webb Road to 8kms from Pigs Head Road intersection/roundabout.

Period of Closure: 8am to 5:30pm

Sunday 16th February 2025

Crows Nest Road, from intersection of Paiaka Road to 2kms from SH1.

Period of Closure: 8am to 5:30pm

Sunday 16th March 2025

Mangapai Caves Road Hillclimb, from Roundtree Road to McDonnell Road.

Period of Closure: 8am to 5:30pm

2. Approves the temporary closure of the side roads off the roads to be closed for up to 100 metres from the intersection for safety purposes.
3. Delegates to the Chair of the Infrastructure Committee and General Manager Infrastructure the power to give public notice of these proposed temporary closures, to consider any objections and to either approve, cancel or amend any or all of the temporary road closures if applicable.

Carried

6.8 Temporary Road Closure – Vibes on Vine 2025

Moved By Cr Nicholas Connop

Seconded By Cr Carol Peters

That the Council:

1. Approves the temporary closure of the following roads to ordinary traffic for the Vibes on Vine event on the following dates in accordance with section 342 (1)(b) and Schedule 10 Clause 11 of the Local Government Act 1974.

Friday 7th February 2025

Vine Street, from Vine/Bank Street intersection to 41 Vine Street.

Period of Closure: 7pm to 11:59pm.

Saturday 8th February 2025

Vine Street, from Vine/Bank Street intersection to 41 Vine Street.

Period of Closure: 12am to 11:59pm.

Sunday 9th February 2025

Vine Street, from Vine/Bank Street intersection to 41 Vine Street.

Period of Closure: 12am to 2pm.

2. Approves the temporary closure of the side roads off the roads to be closed for up to 100 metres from the intersection for safety purposes.
3. Delegates to the Chair of the Infrastructure Committee and General Manager Infrastructure the power to give public notices of these temporary road closures.

Carried

6.9 Uptake of Severe Weather Emergency Recovery (Waste Management) Order

Moved By Cr Simon Reid

Seconded By Cr Marie Olsen

That the Council:

1. Approves the invocation of the Severe Weather Emergency Recovery (Waste Management) Order to enable for the construction of a new Class 3 and 4 landfill in Whangarei District.
2. Delegates the decision whether to progress with the implementation of the Severe Weather Emergency Recovery (Waste Management) Order to the Northland Regional Landfill Limited Partnership (NRLLP).
3. Requests that the Northland Regional Landfill Limited Partnership (NRLLP) reports back to Council by February 2025 advising whether the development gains approval of the NRLLP board at their November Board meeting.

Carried

Cr Reid declared and interest as a director of the Northland Regional Landfill Limited Partnership (NRLLP).

A break was taken from 11.34am to 11.40am following Item 6.9.

7. Public Excluded Business / Rāhui Tangata

Moved By His Worship the Mayor

Seconded By Cr Gavin Benney

That the public be excluded from the following parts of proceedings of this meeting. The general subject of each matter to be considered while the public is excluded, the reason for passing this resolution in relation to each matter, and the specific grounds under Section 48(1) of the Local Government Official Information and Meetings Act 1987 for the passing of this resolution are as follows:

General subject of each matter to be considered		Reason for passing this resolution in relation to each matter	Ground(s) under Section 48(1) for passing this resolution
1.1	Closed Minutes Council 24 October 2024	Good reason to withhold information exists under Section 7 Local Government Official Information and Meetings Act 1987	Section 48(1)(a)
1.2	Closed Minutes Extraordinary Council 21 November 2024		
1.3	Road Legalisation Blue Horizon Road		
1.4	Road Legalisation Otuhi Road		
1.5	Road Legalisation Rauiri Drive Marsden Cove		
1.6	Transition Advisory Board Update and Terms of Reference		
1.6	Property Purchase		

This resolution is made in reliance on Section 48(1)(a) of the Local Government Official Information and Meetings Act 1987 and the particular interest or interests protected by Section 6 or Section 7 of that Act which would be prejudiced by the holding of the whole or the relevant part of the proceedings of the meeting in public, are as follows:

Item	Grounds	Section
1.1	For reasons stated in the open minutes	
1.2	For reasons stated in the open minutes	

1.3	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations)	Section 7(2)(i)
1.4	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations)	Section 7(2)(i)
1.5	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations)	Section 7(2)(i)
1.6	To enable Council to carry on without prejudice or disadvantage commercial activities	Section 7(2)(h)
1.7	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations)	Section 7(2)(i)

Carried

8. Closure of Meeting / Te katinga o te Hui

His Worship the Mayor concluded at 12.04pm with a prayer.

Confirmed this 12th day of December 2024

His Worship the Mayor Vince Cocurullo (Chairperson)